

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

WCG GROUP, LLC DBA AITOH CO., *Claimant*

v.

CHRIS PHILLIPS AND PAUL KNOTT, *Respondents*.

DOCKET NO. 1999(F)

Served: February 21, 2024

ORDER OF: Linda S. Harris Crovella, *Administrative Law Judge*.

ORDER ON REQUEST TO EXTEND TIME TO RESPOND TO MOTION TO DISMISS

Claimant WCG Group, LLC d/b/a Aitoh Co. (“Aitoh”), initiated this proceeding on November 28, 2023, by filing an informal complaint against Respondents Chris Phillips (“Phillips”), and Paul Knott (“Knott”). On December 26, 2023, Respondent Paul Knott, filed an answer to the informal complaint and a separate affidavit of non-consent to the informal adjudication of the claims in accordance with Subpart S 46 C.F.R. § 502.301. On February 7, 2024, the claim was reassigned to the undersigned Administrative Law Judge for adjudication under the procedures at 46 C.F.R. Subpart T. 46 C.F.R. § 502.311. The entire proceeding as to all named parties is now subject to Subpart T.

Also on December 26, 2023, Respondent Paul Knott filed a motion to dismiss the complaint and a memorandum in support of the motion to dismiss. On February 16, 2024, Claimant Aitoh sent an email to Judges@FMC.gov asking to extend time to respond to the Motion to Dismiss, among other things.¹

Because the Claimant has requested additional time to formulate a response and is otherwise unfamiliar with the procedures and rules of the Federal Maritime Commission, good cause is found to allow the Claimant an additional week in which to submit a response to this Order. Accordingly, Claimant’s request for an extension of time is **GRANTED**, consistent with the below.

¹ *Ex parte* communications are prohibited by § 502.11, which is applicable to the instant proceeding. All communications and submissions must be copied to all parties involved in the proceeding when sent to the undersigned. All email should be directed to Judges@FMC.gov with the case name and docket number in the subject heading. Formal submissions must include a certificate of service on the other parties. *See*, § 502.320.

Claimant's response should address whether it intends to seek reparations from the two individuals currently identified as the Respondents in this proceeding, or whether it seeks to add the corporations for which these individuals work. If Claimant wishes to add the corporations, it must send an amended complaint to the Secretary at OSMaritime@FMC.gov for service on the new respondent(s). Claimant may not change or add anything to the amended complaint beyond adding the additional respondent(s).

If Claimant does not submit an amended complaint naming additional respondents, it must respond to the Motion to Dismiss by addressing the arguments raised therein. Specifically, Claimant must address whether it intends to submit evidence that it can pierce the corporate veil as to Respondent Knott and should submit that evidence. Similar evidence should be submitted regarding Respondent Phillips, as well.

Respondent Phillips has received and responded to several electronic communications from the Secretary's Office and from the Judges' Office yet has failed to submit an answer to the Complaint. Failure to respond to the Complaint can result in a default decision.

Accordingly, it is **ORDERED** that Claimant Aitoh either file an amended complaint or response to the motion to dismiss by February 28, 2024.



Linda S. Harris Crovella
Administrative Law Judge